

 Department of Children & Family Services <i>Building a Stronger Louisiana</i>	Division/Section	Family Support
	Chapter No./Name	4-Economic Stability (ES)
	Part No./Name	F-Case Maintenance (SNAP)
	Section No./Name	F-300-SNAP Intentional Program Violations (SNAP)
	Document No./Name	F-330-SNAP Penalties
	Effective Date	December 1, 2013

I. STATEMENT OF POLICY

HOUSEHOLD MEMBERS FOUND TO HAVE COMMITTED IPV ARE INELIGIBLE TO PARTICIPATE IN THE PROGRAM:

- for six months for the first violation (offenses 6/83 - 9/96),
- for twelve months for the first violation (offenses 10/96 and thereafter),
- for twelve months for the second violation (offenses 6/83 - 9/96),
- for twenty-four months for the second violation (offenses 10/96 and thereafter),
- permanently for the third violation.

Note: One or more IPV disqualifications which occurred prior to the June 1, 1983 implementation of these penalties and addressed under the provisions of the Food Stamp Act of 1977 and 1980 amendments must be considered as only one previous disqualification when determining the penalty to impose.

Individuals found guilty of an Intentional Program Violation because of making a fraudulent statement or representation with respect to identity or residence in order to receive multiple benefits simultaneously shall be disqualified for ten years.

Individuals found by a court to have used or received SNAP in a transaction involving the sale of a controlled substance shall be disqualified from the program:

- for one year for the first finding occurring 9/94 through 9/96,
- for two years for the first finding occurring 10/96 and thereafter,
- permanently for the second finding.

Individuals found by a court to have used or received SNAP in a transaction involving the sale of firearms, ammunition or explosives shall be permanently disqualified from the program.

Individuals convicted of trafficking SNAP benefits of \$500 or more shall be permanently disqualified.

If the court imposes a penalty, the period of disqualification is in accordance with the court order.

II. PROCEDURES

* There are no procedures associated with this policy.

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III. FORMS AND INSTRUCTIONS

There are no forms associated with this policy.

IV. REFERENCES

LAC 67: III, Subpart 3 Supplemental Nutrition Assistance Program (SNAP) Chapter 19 Subchapter P Section 2007. **